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NAJERA, ET AL. v. GENERAL MOTORS LLC

CASE NO.: 24NWCV01600

HEARING: 09/01/2026 @

9:30 AM

#11

TENTATIVE ORDER

Plaintiffs Elizabeth Najera and Gerome Najera's motion for attorneys' fees and costs is GRANTED in the amount of \$36,985.51 reflecting \$32,309.50 in attorneys' fees and \$4,676.01 in costs.

Moving party to give notice.

Plaintiffs Elizabeth Najera and Gerome Najera's (Plaintiffs) move for attorney's fees and costs.

Background

On May 22, 2024, Plaintiffs filed this lemon law action against Defendant General Motors LLC (Defendant) and Does 1 through 10, inclusive. The complaint alleges Plaintiffs purchased a 2019 Chevy Traverse, VIN 1GNERGKW4KJ299468 (Subject Vehicle) and experienced nonconformities to warranty including check engine light, water leak, electrical, fluid leak, defective seam, and other defects. (Complaint, ¶¶ 4-12.) The complaint for

restitution and damages alleges violations under the Song-Beverly Act.

On January 6, 2026, Plaintiffs filed a Notice of Acceptance of Defendant's statutory offer to compromise under Code of Civil Procedure section 998. The Court entered judgment on the same date in favor of Plaintiffs and against Defendant.

On July 13, 2026, after taking Defendant's motion to tax costs under submission, the Court granted the motion in part and denied it in part. The Court taxed \$194.25. (Order, 7/13/26.)

Legal Standard

The Song-Beverly Consumer Warranty Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d).)

"Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, citation omitted.) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Evidentiary Objections

Plaintiffs make eleven evidentiary objections to the declaration of Natalie Keshishian.

The Court rules as follows:

OVERRULED: 1,
2, 3, 4, 5, 6, 7, 8, 9, 10, 11

Discussion

Plaintiffs move for an award of attorney's fees and costs in the amount of \$57,463.26 reflecting \$43,827.50 in attorney's fees, a lodestar multiplier of 1.2 for total attorney's fees in the amount of \$52,593.00, and \$4,870.26 in costs.

Entitlement to Fees

Plaintiffs argue that they are the prevailing party pursuant to the parties' settlement agreement. Plaintiffs' signed Defendant's Section 998 Offer to Compromise November 26, 2025. (Hunt Decl., ¶ 5.) Defendant does not dispute that Plaintiffs are the prevailing party and thus entitled to reasonable attorney's fees and costs.

Accordingly, Plaintiffs are entitled to reasonable attorney's fees and costs.

Reasonableness of the Hourly Rates

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court [...]." (Ibid.) "[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) "Courts

have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof.” (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247, citation omitted.)

Plaintiffs’ counsels’ fees and experience are summarized as follows:

Name

Position

Years of Experience

Hourly Rate

Joseph Kaufman

Shareholder

23

\$595, \$615

Isaac S. Agyeman

Attorney

14

\$525

Christopher R. Hunt

Attorney

2.5

\$375, \$395

J. Brian Lynn

Attorney

19

\$475

Melissa Lopez

Paralegal

3

\$175, \$250

(Kaufman Decl., ¶¶ 6, 14.)

Plaintiffs contend that the hourly rates are reasonable based on the relevant community and that the hourly rates are supported by prior trial court orders.

As Defendant does not oppose the rates requested by Plaintiffs, the Court finds the requests reasonable based on the declaration and supporting evidence.

Reasonableness of the Fees

The Court is vested with discretion to determine which claimed hours were reasonably spent and what an attorney's reasonable hourly rate is. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501; see also *Flannery v. California Highway Patrol* (1987) 61 Cal.App.4th 629, 644 ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.'" (*Mikhaeilpoor*, supra, 48 Cal.App.5th at p. 247, citation omitted.) "[C]ounsel's time records [should be used] as the starting point for [a court's] lodestar determination." (*Horsford v. Board of Trustees of CSU* (2005) 132

Cal.App.4th 359, 397.) In assessing a motion for attorney's fees, "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.)

Plaintiffs argue the fees requested are reasonable based on the work required in this case to achieve a successful result. Plaintiffs billed 104.3 hours in less than a two-year period and contend that this is reasonable based on Defendant rejecting early settlement attempts, Defendant's failure to timely produce a PMQ, and the need for a second motion related to PMQs. Plaintiffs provide a billing statement. (Kaufman Decl., Exh. A.)

In opposition, Defendant argues for a reduction of 70.95 billed hours for a total reduction of \$28,805.25 in fees. Defendant argues that the hours are unreasonably incurred and seek reductions of the following: pre-litigation work, templated discovery notices, reviewing Defendant's answer, reviewing Defendant's discovery responses, drafting templated discovery responses, motion to compel, excessive block-billing, unnecessary third-party subpoenas, vehicle surrender, excessive client communications, and this motion.

Defendant seeks a 6.2 hour reduction of the claimed 7.2 hours in pre-litigation work before filing the complaint including 3.2 hours to review and analyze the file, 1 hour to review repair records, 1 hour to communicate with Plaintiffs regarding the car in the shop, and 0.7 hours for further review. Plaintiffs argue that pre-litigation fees are recoverable under the Song-Beverly Act. (Civ. Code, § 1794, subd. (d) [includes fees "reasonably incurred by the buyer in connection with the commencement and prosecution of such action."].) While pre-litigation fees are permitted, they must be reasonably incurred. The Court agrees that the amount claimed for reviewing prior to filing the complaint is unreasonable and unsupported. The Court reduces 3 hours of Kaufman's time and 1 hour of Agyeman's time between April 29, 2024 and May 22, 2024 for pre-litigation work. This is a total reduction of \$2,310.

Defendant next seeks a 3.7 hour reduction of the 5.1 hours claimed for templated deposition notices. Defendant argues that Plaintiffs' counsel billed 11 separate times to draft eight templated PMQ deposition notices in which the only change was the deposition date. Here, the Court notes that at least on 08/16/2024, 09/04/2024, 09/23/2024, 10/18/2024, 11/01/2024, 11/08/2024, 10/23/2025, and 10/29/2025, Melissa Lopez billed 0.5 hours each time for

drafting identical notices which only required a change of date. The Court reduces three hours of Melissa Lopez's time for these templated notices for a total reduction of \$525.

Defendant seeks to reduce 12.2 hours out of the claimed 14.2 hours billed for reviewing Defendant's written discovery responses, deposition notice objections, and document production. Defendant argues that the hours claimed are excessive given that this discovery is substantively similar to discovery from prior cases. Defendant notes that Kaufman billed 0.4 hours each time he reviewed the same objections to the amended deposition notices.

In reply, Plaintiff argues that Defendant improperly conflates 15 separate billing entries. Plaintiff argues that Defendant's conduct necessitated these fees. Plaintiff additionally argues that Kaufman's time was spent in his capacity as a supervising attorney and his time billed was minimal.

The Court notes that Agyeman billed at least 3 instances, and Kaufman billed at least 6 instances, of receiving and reviewing the identical objections to the deposition notices. Both Kaufman and Agyeman billed for reviewing objections to the fourth amended deposition notice in November of 2024. Additionally, both Kaufman and Agyeman billed 0.4 hours each on 8/29/2024 to review the same discovery responses. The Court agrees that there are inefficiencies in Plaintiffs' counsels' review of discovery stemming from multiple attorney's reviewing templated discovery responses, repeatedly. Additionally, the Court finds Agyeman's billing of nine hours over three days (3/24-3/26/2024) to review in preparation of the deposition on March 26, 2026 excessive and unsupported, especially in light of the hours billed for reviewing Defendant's discovery over the course of the litigation. The Court reduces 5 hours of Agyeman's time and 1 hour of Kaufman's time related to reviewing discovery. This is a total reduction of \$3,220.

Defendant additionally seeks to reduce 11.7 hours of the 11.7 claimed hours related to Plaintiffs' motion to compel Defendant's PMQ based on block-billing, duplicative tasks, and that Plaintiffs have already received attorney's fees in connection with the motion. Defendant points to the Court's ruling on Plaintiffs' motion in which the Court awarded \$1,475 out of the requested \$2,900 in monetary sanctions reflecting attorney's fees arising out of the motion. (Order, 10/21/25; Keshishian Decl., ¶ 11.) Plaintiffs now request \$4,997.50 when they initially requested \$2,900 in their motion.

(Keshishian Decl., ¶ 11.) Plaintiffs, in reply, argue “[w]hile Plaintiffs concede that they should not recover the \$1,475.00 already received, it is respectfully submitted that Plaintiffs should receive attorney’s fees for the portion that was not already awarded.” (Reply, 6:25-27.) The Court notes that Plaintiffs do not explain the discrepancy in the time requested between that motion and this one. Given that the Court has already ruled on, determined, and awarded reasonable attorney’s fees arising out of this motion, the Court reduces the total requested amount, \$4,997.50.

Defendant next requests a reduction of 8.6 hours for work related to third-party subpoenas on the grounds that they were unnecessary and that the depositions never took place. Defendant notes that 2.5 hours related to these subpoenas was incurred after Defendant’s Section 998 Offer. The Court denies this request on the grounds that deposition subpoenas are reasonably incurred in litigation. The Court does not find the purported 2.5 hours related to the subpoenas after the offer in the billing records.

Defendant next seeks to deduct 5.9 hours related to the vehicle surrender coordination and settlement disbursement and 3 hours related to attending the vehicle surrender. Defendant argues that these are administrative tasks and should not be billed by counsel at the highest rate. Plaintiffs argue that these tasks are related to the conclusion of a lemon law case. Here, the Court agrees that these tasks may be related to the litigation but also finds Defendant’s argument well-taken, that it is unreasonable to designate attorney time to this. The Court strikes the following: 0.1 by Kaufman on 01/27/2026, 0.3 by Hunt on 1/28/2026, 0.2 by Kaufman on 01/28/2026, 0.1 by Hunt on 02/06/2026, 0.1 by Kaufman on 02/06/2026, 0.3 by Kaufman on 02/08/2026. This is a total reduction of \$465.50.

Defendant seeks a reduction of 4.85 hours for excessive client communications throughout this litigation. Defendant argues that 9.7 hours for client communications is unreasonable and requests a 50% deduction. Given the lack of specificity in this argument, the Court denies this request.

Lastly, Defendant requests the Court reduce 3.5 hours out of 6.5 requested hours related to this motion on the grounds that this work involved standard arguments and templates. In reply, Plaintiffs argue that the time requested is already reduced. (Hunt Supp., Decl., ¶ 4.) The Court does not reduce fees related to this motion.

The Court additionally denies Defendant's requests to reduce hours for reviewing its answer and drafting templated discovery responses.

Based on the foregoing, the Court reduces \$11,518 in claimed fees as unreasonable.

Lodestar

Multiplier

The lodestar amount "may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1399 [citing Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132].) The purpose of any lodestar and the increase thereto "is intended to approximate market-level compensation for such services" and is entirely discretionary. (Ibid.) "The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action." (Weeks v. Baker & McKenzie (1998) 63 Cal.App.4th 1128, 1171-72.)

Plaintiffs request a 1.2 multiplier based on the risk of taking this case on a contingent fee basis and the result achieved.

The Court declines to apply a positive multiplier. The Court finds that this case was relatively simple—involving only one motion and standard discovery prior to the acceptance of Defendant's offer. There is nothing to indicate this matter was notably complicated or precluded other employment.

Costs

Plaintiffs requests \$4,870.26 in costs. As explained above, the Court taxed \$194.25. (Order, 7/13/26.) Therefore, Plaintiffs' request for \$4,676.01 in costs and expenses is granted.

In sum, Plaintiffs' motion for attorneys' fees and costs is GRANTED in the amount of \$36,985.51 reflecting \$32,309.50 in attorneys' fees and \$4,676.01 in costs.